

Determination that Only One Source is Reasonably Available (Including Brand Name) – FAR Part 12 Acquisitions under the SAT

MEMORANDUM TO THE FILE

Subj: DETERMINATION THAT ONLY ONE SOURCE IS REASONABLY AVAILABLE FOR A FAR PART 12 ACQUISITION COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

I. BACKGROUND:

1. As required by FAR 12.102(a) this memorandum documents the determination that, for this acquisition valued at or below the Simplified Acquisition Threshold (SAT), only one source is reasonably available. This memorandum further outlines the basis supporting that determination.

II. DESCRIPTION OF ITEM OR SERVICE:

The Government requires a service contract for inspection, maintenance, repair, and technical support of installed blast shield systems supporting depot blast booth operations at Marine Depot Maintenance Command (MDMC). The blast shields are critical safety components designed to protect personnel, equipment, and facilities during abrasive blasting operations and must operate within strict engineering tolerances and safety standards.

The required service includes system inspection, calibration, repair, replacement of worn or damaged components, and technical support using OEM-approved procedures and certified replacement parts to maintain operational safety, system reliability, and compliance with applicable safety and engineering requirements.

The required source is **Blast One**, the Original Equipment Manufacturer (OEM) and/or authorized technical representative for the installed blast shield system. Due to proprietary system design, specialized technical requirements, and safety certification requirements, only the OEM or authorized provider can perform required services.

The services are required to maintain operational readiness of depot blast booth systems and prevent mission disruption due to equipment failure or safety risk. The period of performance is **30 days**.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING *(select all that apply)*:

A. X **ONLY ONE RESPONSIBLE SOURCE** *(select all that apply)*:

1. RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.
2. X EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

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The OEM maintains exclusive technical data, engineering specifications, system tolerances, and certified maintenance procedures required to properly service and maintain the installed system. Only the OEM or its authorized technical representative possesses proprietary knowledge, specialized tooling, and certified replacement components required to safely perform inspection, maintenance, and repair services. No other vendor has access to the proprietary technical data, system specifications, or authorization required to perform the services without risk to system performance, personnel safety, or equipment integrity. Market research determined no other sources can provide compatible services meeting Government requirements without substantial duplication of cost, unacceptable delays, or increased operational risk. Use of non-authorized service providers would compromise system safety certification, increase risk of equipment failure, and create unacceptable mission impact to depot operations. Accordingly, Blast One is the only responsible source capable of fulfilling the Government's requirement.

3. ____ OTHER REASONS.

B. ____ **BRAND NAME**

Item required must be a brand name, product, or feature of a product, particular to one manufacturer.

C. ____ **URGENT AND COMPELLING**. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance:
3. Explanation of why delivery/commencement of services by the date mentioned above is required:

V. CERTIFICATIONS:

A. Technical / Requirements Certification: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

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Signature

Clayton Brooks/7606

Name (Printed) / Phone #

3/9/26

Date

B. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

RADI.MATTHEW.S.COTT.1284456935
Digitally signed by
RADI.MATTHEW.S.COTT.1284456935

Signature

Matthew Radi / 8183

Name (Printed) / Phone #

3/25/26

Date

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Distribution List for DL ONLY Limited Dissemination Control

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